

24SMCV06226 24SMCV06226

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Case Number: 24SMCV06226 Hearing Date: July 2, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

DEBORAH LEVY, et al.,

Plaintiff,

v.

HENRI LEVY, et al.,

Defendants.

Case No.:

24SMCV06226

Hearing Date: 7/2/26

Trial Date:

9/13/27

[TENTATIVE] RULING RE:

MOTION FOR JUDGMENT ON THE PLEADINGS

Background

Plaintiffs

Deborah Levy ("Deborah") and David Levy ("David") (collectively, "Plaintiffs") are brother and sister and the sole heirs and beneficiaries of their late father, Daniel Levy ("Daniel"), who died on January 17, 2022. Defendant Henri Levy ("Henri") is the brother of Plaintiffs' father and Plaintiffs' uncle.

In September 2020,

Plaintiffs' aunt, Jafa (or Yafa) Levy, sister of Daniel and Henri, sold a building in Jerusalem, Israel owned by their late father, Prosper Levy ("Prosper"). The heirs of Prosper agreed

that the sale proceeds of \$10 million would be divided between them as follows: 55% to Daniel (\$5.5 million); 20% to Henri (\$2 million); 10% to Jacob Levy (\$1 million); and 15% to Jafa (\$1.5 million). At Daniel's request, Jafa wired Daniel's portion of the proceeds to Henri to hold for Daniel's and Plaintiffs' benefit. After Daniel's death in 2022,

Plaintiffs learned from Jafa that she wired Daniel's portion of the sale proceeds to Henri. Plaintiffs requested that Henri return the \$3.5 million to them.

Henri has refused.

On December 12,

2024, Plaintiffs filed a complaint against Henri alleging (1) money had and received; (2) breach of fiduciary duty; (3) conversion; and (4) unjust enrichment. On March 11, 2025, Henri

filed an answer to the complaint. On May

15, 2026, Deborah and David each filed declarations pursuant to Code of Civil Procedure section 377.32.

On March 17, 2026,

Henri filed the instant Motion for Judgment on the Pleadings. On June 18, 2026, Plaintiffs filed an opposition to the Motion. On June 25, 2026, Henri filed a reply.

Request for Judicial Notice

Defendant's

Request for Judicial Notice is GRANTED pursuant to Code of Civil Procedure section 452.

Meet and Confer

“Before

filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code of Civ. Proc., §439, subd. (a).)

Defense

counsel Rossman only attests to a single meet-and-confer email. (Motion, Rossman Dec., ¶3.) Counsel was required to meet and confer in person, by phone or by video conference.

A single email is insufficient to satisfy section 438 subdivision (a). Nonetheless, the Court exercises its discretion to hear the motion.

Motion for Judgment on the Pleadings Standard

A defendant may

move for judgment on the pleadings when the “complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc. §438(b)(1) and (c)(1)(B)(ii).) “A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877.)

“A motion for

judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.

Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (citations omitted).)

The standard for

ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322 (citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216).)

Analysis

Henri moves for judgment on the pleadings on grounds of standing. Henri argues Plaintiffs lack standing to assert claims over Daniel's estate under either California or French law. Henri argues French law applies because Plaintiffs are French citizens who reside in France, as was their father Daniel. Henri argues Plaintiffs have not filed a declaration pursuant to Code of Civil Procedure sections 377.30 to 377.31 attesting to their status as Daniel's estate's duly appointed personal representative or as successors in interest who have the legal right to act on behalf of the estate. Henri argues that until they do so, they cannot assert Daniel's claims.

Henri also argues French Civil Code Article 771 required Plaintiffs to accept or renounce David's estate within four months of Daniel's death. Henri argues Plaintiffs filed the action nearly three years after Daniel's death. Henri argues Plaintiffs must demonstrate under French law that they have transitioned from "potential" to "accepted" heirs.

Henri argues the complaint fails to distinguish between the portion of funds held by him for Daniel's benefit and the portion held by him for Plaintiffs. Henri argues this requires a formal acceptance of succession under French law. Henri argues the complaint does not qualify as "tacti acceptance" under French law because Plaintiffs have not filed the requisite declaration under Code of Civil Procedure section 377.32.

Henri argues Plaintiffs have not filed a section 377.32 declaration and cannot truthfully do so. Henri argues this pleading omission is grounds to grant judgment on the pleadings without leave to amend.

Lack of standing may be raised on demurrer if the lack of standing appears on the face of the complaint and judicially noticeable evidence. (Wimber v. Scott (2025) 113 Cal.App.5th 349, 357.) Such a complaint is vulnerable to demurrer for failure to state a cause of action. (Id.)

Henri fails to cite any authority supporting his claim that French law applies. Henri states in his opening brief that French law applies to this proceeding because “Plaintiffs allege they are French citizens residing in France and that the decedent—their father, Daniel Levy—lived and died in Paris, France.” (Motion, 8:6-9.) Henri’s statement is not supported by any citation to authority.

Moreover, Plaintiffs argue in opposition that they have complied with French law and accepted their succession. Plaintiffs argue they would have provided such evidence in discovery or during a proper meet and confer if Defendant had met and conferred as required. (Soloway Dec., ¶¶3-4.) Soloway’s declaration testimony and attached evidence regarding Plaintiffs’ acceptance of their father’s estate may not be considered, as they are extrinsic evidence to the complaint. However, regardless of whether Plaintiffs have in fact accepted their succession to Daniel’s estate under French law, Defendant Henri failed to establish as a threshold issue on this motion for judgment on the pleadings that Plaintiffs were required to comply with French law in order to have standing to proceeding with this California civil action.

Henri also argues Plaintiffs lack standing under California law, because they have not filed a declaration under Code of Civil Procedure section 377.32. However, Plaintiffs allege that, prior to his death, Daniel instructed Jafar to wire \$3.5 million to Henri for his own and Plaintiffs’ behalf. (Complaint, ¶13.) As acknowledged by Henri, Plaintiffs are therefore proceeding on their own direct right to a portion of the proceeds as individuals, not as Daniel’s successors or heirs. Plaintiffs’ lack of standing as to Daniel’s portion of the funds would not be grounds to grant judgment on the pleadings. (Santa Clarita Organization etc. v. County of Los Angeles (2024) 105 Cal.App.5th 1143, 1165 (motion for judgment on the pleadings, like a demurrer, cannot be granted as to only a portion of the cause of action).)

Henri

also argues Plaintiffs lack standing because they failed to file a declaration pursuant to Code of Civil Procedure section 377.32. Section 377.32(a) requires that a person suing as a decedent's successor-in-interest submit a declaration establishing standing as the decedent's successor-in-interest or as a person authorized to act on behalf of the decedent's successor in interest. "The person who seeks to commence an action or proceeding...as the decedent's successor in interest under this article, shall execute and file an affidavit or declaration under penalty of perjury under the laws of this state stating all of the following...." (Code of Civil Proc., §377.32.)

Plaintiffs filed declarations pursuant to Code of Civil Procedure section 377.32 on May 15, 2026.
Henri's objection on this ground is therefore moot.

Conclusion

Henri's Motion for Judgment on the Pleadings is denied. Henri fails to establish Plaintiffs' lack of standing based on the face of the complaint or judicially noticeable evidence. Henri to answer within 20 days.

Dated: July 2, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court